

ORDER
MADE ON MAY 25th, 1929.

SIXTEENTH (EXTRAORDINARY) SESSION.

1929.
May 25th.
File E. c. XIX.

Before :

MM. ANZILOTTI, <i>President</i> ,	
HUBER, <i>Vice-President</i> ,	
LODER,	}
NYHOLM,	
DE BUSTAMANTE,	
ALTAMIRA,	
ODA,	
PESSÔA,	}
HUGHES,	
BEICHMANN,	
NEGULESCO,	} <i>Deputy-Judges.</i>

CASE CONCERNING THE FACTORY AT CHORZÓW
(INDEMNITIES).

The Government of Germany, represented by Dr. Erich Kaufmann, Professor at Bonn,

Applicant,

versus

The Government of the Polish Republic, represented by Dr. Thadeus Sobolewski, Agent for the Polish Government before the Polish-German Mixed Arbitral Tribunal,

Respondent.

THE COURT,

composed as above,
after deliberation,
makes the following *Order*:

The Permanent Court of International Justice.

Having regard to the Application instituting proceedings filed on behalf of the German Government with the Registry of the Court on February 8th, 1927 ;

Having regard to Judgment No. 13 delivered by the Court upon this Application on September 13th, 1928 ;

Having regard to the Order made by the President of the Court on December 15th, 1928¹ ;

Having regard to Article 48 of the Statute ;

Having regard to Article 61 of the Rules of Court ;

Whereas, by a letter dated December 6th, 1928, the Agent for the German Government in this case, referring to Article 61 of the Rules, informed the Registrar of the Court that, "in the case concerning the factory at Chorzów, the Parties had concluded an agreement regarding the settlement of the dispute" ;

Whereas, by a letter dated December 13th, 1928, the Agent for the Polish Government in this case addressed to the Registrar a communication in the same terms ;

Whereas copies of an agreement reached on November 12th, 1928, between the Polish Treasury, of the one part, and the Bayerische Stickstoffwerke A.-G. and the Oberschlesische Stickstoffwerke A.-G., represented by Professor Dr. Caro, of the other part, as also of notes exchanged on November 27th, 1928, between the Polish Minister for Foreign Affairs and the German Minister at Warsaw, were communicated to the Court by the Agent for the German Government ; and as the Polish Government's Agent referred to the documents thus filed, copies of which had been placed at his disposal ; as, moreover, by a letter dated February 1st, 1929, he communicated to the Registrar, at the latter's request, the Polish, authoritative, text of the above-mentioned agreement of November 12th, 1928 ;

Whereas, according to the terms of the above-mentioned exchange of notes of November 27th, 1928, the German Government declared that, "as regards the Chorzów case, no further difference of opinion exists as between the German Reich and Poland" ; and that it had been agreed between the Parties that the "suit now pending before the Permanent Court of International Justice at The Hague will be withdrawn as having no further purpose" ;

¹ Annex, p. 14.

Whereas, by an Order made on December 15th, 1928, the President of the Court—considering amongst other things that “the agreement concluded must be considered as settling the whole of the dispute submitted to the Court on February 8th, 1927, by the German Government; and that since written notice of the agreement concluded between the Parties was given to the Court before the close of the proceedings, it remains for the Court, under Article 61 of the Rules, merely to record officially the conclusion of the agreement”—terminated the expert enquiry instituted in the case concerning the factory at Chorzów (indemnities), under the terms, *inter alia*, of the judgment given by the Court on September 13th, 1928;

Considering that the notes exchanged on November 27th, 1928, between the Polish Minister for Foreign Affairs and the German Minister at Warsaw constitute in this case the “agreement regarding the settlement of the dispute”, written notice of which to the Court is, under Article 61, paragraph 1, of the Rules, one of the conditions governing the application of that provision;

THE COURT,

Places on record the agreement regarding the settlement of the dispute concluded on November 27th, 1928, between the Government of the German Reich and the Government of the Polish Republic, Applicant and Respondent respectively, in the case concerning the factory at Chorzów (indemnities);

Declares that the proceedings in regard to the said suit are terminated.

Done in French and English, the French text being authoritative, at the Peace Palace, The Hague, this twenty-fifth day of May, one thousand nine hundred and twenty-nine, in three copies, one of which is to be placed in the archives of the Court, and the others to be forwarded to the Agents of the German and Polish Governments respectively.

(Signed) D. ANZILOTTI,
President.

(Signed) Å. HAMMARSKJÖLD,
Registrar.
